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|     |                                                                   | GM is to file its Answer within 10 days.<br><br><i>Plaintiff is to give notice of this ruling.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 12. | Waypoint Aviation Services v. Transcontinental Air LLC 25-1495879 | (Moot-FAC filed)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 13. | Soteropoulos v. FCA US LLC 25-1492568                             | (Moot-FAC filed)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 14. | Glickman v. Krolkowski 19-1049771                                 | <p>Before the Court are the Demurrer and Motion to Strike filed on 12/15/25 by Defendants Charles Krolkowski and Newmeyer &amp; Dillion LLP ("Defendants"), directed to the Eighth Cause of Action in the Fourth Amended Complaint (the "Fourth AC") filed on 11/13/25 by Plaintiff William Glickman ("Plaintiff").</p> <p>The Demurrer is <b>OVERRULED</b>. The Demurrer asserts that the claim under C.C.P. § 496 fails to state sufficient facts to support the cause of action. However, although not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will suffice, a claim is stated where facts are also alleged to infer careful planning and deliberation reflecting the requisite criminal intent. (<i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361-362; <i>Johnson v. Connie, LLC</i> (2025) 113 Cal.App.5th 850, 855-856.) Plaintiff alleges here that the Defendants repeatedly made knowingly false representations to Plaintiff to obtain fees, under circumstances reflecting careful planning, deliberation, and concealment, and thus showed criminal intent. (Fourth AC, ¶¶ 34, 36, 109-117, 130, 139-143, 189-193, and 369-371.) The claim is thus adequately pled to withstand Demurrer. Defendants' assertions that the claim lacks merit are beyond the scope of Demurrer.</p> <p>The Motion to Strike is <b>DENIED</b>. The motion asserts that the sums claimed as damages on the Eighth Cause of Action are grossly excessive. But Defendants have not shown that the dollar value for what was allegedly stolen is necessarily the only basis to claim actual damages here. (See <i>Citizens of Humanity, LLC v. Costco Wholesale Corp.</i> (2009) 171 Cal.App.4th 1, 18-19 [disapproved on other grounds in <i>Kwikset Corp. v. Sup. Court</i> (2011) 51 Cal.4th 310].) Whether the specific sums claimed as damages are justifiable is beyond the scope of the motion.</p> <p>Defendants are to file their Answer to the Fourth AC within 10 days.</p> <p><i>Plaintiff is to give notice of these rulings.</i></p> |
| 15. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 16. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 17. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 18. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 19. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 20. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 21. |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |